

Horse Lease Agreement — French Heritage Equestrian (Lessee)

1. PARTIES

1.1 This Horse Lease Agreement (the "Agreement") is made effective as of August 2, 2026 by and between Charles Zigmund of 752 Windemere ct, San Diego, California 92109 ("Lessor") and French Heritage Equestrian of 11500 Clews Ranch Rd Ste A, San Diego, CA 92130 ("Lessee").

2. THE HORSE

2.1 Horse

This Agreement applies to the following horse (the "Horse"): Beaumont de Cactai

Color: Bay

Markings: Star and left hind sock

Breed: Selle Français

Registration Number: SF-2016-04412

Sex: Gelding

Year foaled: April 12, 2016

Current fair market value: \$45,000.00

Microchip: 985141002347781

Passport: FRA-2016-778110

2.2 Ownership of the Horse

Lessor warrants that Lessor lawfully owns the Horse — whether owned outright, financed without any restriction that prohibits or limits leasing the Horse, or owned jointly with one or more other owners — and that Lessor has all requisite rights, authority, and (where there are co-owners) permission to enter into this Agreement and lease the Horse.

2.3 Are there any ownership related leasing restrictions? No

2.4 Behavior

The Lessor warrants that the Horse has no history of dangerous or vicious behavior as of the Effective Date of this Agreement.

2.5 Physical Condition

The Lessor warrants that the Horse is sound and in good physical condition as of the Effective Date of this Agreement.

2.6 Pre-Lease Veterinary Examination

2.7 Pre-Lease Trainer Evaluation

Pre-lease trainer evaluation of the Horse: Lessee requested at Lessor's expense

2.8 Disclaimer of Warranties

Except for the representations expressly stated in this Agreement, LESSOR MAKES NO WARRANTIES, EXPRESS OR IMPLIED, REGARDING THE HORSE, INCLUDING THE WARRANTY OF FITNESS FOR A PARTICULAR PURPOSE.

3. PURPOSE AND LEASE GRANT

3.1 Purpose of Agreement

For instructional purposes, Lessee wishes to ride and/or handle Lessor's horse, and Lessor agrees to allow Lessee to ride and/or handle Lessor's horse in exchange for the consideration described herein.

3.2 Lease Grant

Subject to the terms and conditions of this Agreement, Lessor agrees to lease to Lessee and Lessee agrees to lease from Lessor the horse described below.

3.3 Lease Type

Lease type: Partial lease (shared or limited access).

4. DEFINITIONS; BINDING EFFECT; THIRD-PARTY BENEFICIARIES

4.1 "Lessor Parties" means Lessor and Lessor's heirs, next of kin, spouse, estate, executors, administrators, legal representatives, successors, and assigns.

4.2 "Lessee Parties" means Lessee and, as applicable, Lessee's owners, principals, proprietors, partners, members, managers, officers, directors, employees, trainers, instructors, agents, contractors, and volunteers, and the family members of any of the foregoing. With respect to each natural person falling within any of the foregoing categories, "Lessee Parties" also includes that person's heirs, next of kin, spouse, estate, executors, administrators, legal representatives, successors, and assigns, in each case to the same extent as if that person had entered into this Agreement individually as Lessee.

4.3 Each party enters into this Agreement on behalf of itself and all of its respective Lessor Parties or Lessee Parties, as applicable, and all releases, waivers, assumptions of risk, and covenants made by a party under this Agreement are made on behalf of all of that party's Parties and bind each of them to the same extent as the party itself.

4.4 Each Lessor Party and each Lessee Party is an intended third-party beneficiary of the releases, waivers, assumptions of risk, and limitations of liability in this Agreement and may enforce them directly.

5. SCHEDULE FOR LESSEE'S USAGE

5.1 Schedule for Lessee's Usage

5.2 Schedule Changes

Any changes to the agreed upon schedule must be made and accepted in writing.

6. LEASE FEE

6.1 850

7. PAYMENT TERMS

7.1 Right of Offset

A party to whom money is owed under this Agreement may offset the amount owed against any amount that party owes to the other party.

7.2 Receipts

A party seeking reimbursement for an expense paid on behalf of the other party shall provide a receipt or other reasonable documentation of the expense as a condition of reimbursement.

7.3 Late Payments

All payments are due on their due date or within 5 business days of notification of the amount owed. Payments will be deemed late if they remain unpaid on the 6th business day. Late payments are considered a breach of the contract terms and may be grounds for termination of the Agreement unless the party from whom the payment is owed has communicated in writing the date by which payment will be made. Payments exceeding 1 calendar month in past-due status constitute grounds for termination for cause under the Termination for Cause provisions of this Agreement unless prior written acceptance of the delay is provided by the party to whom the payment is owed.

8. PAYMENT METHOD

8.1 Payments by the Lessee

The Lessee may pay amounts owed under this Agreement by the following method(s): Zelle

8.2 Payments by the Lessor

The Lessor may pay amounts owed under this Agreement by the following method(s): Zelle

9. LOCATION OF HORSE

9.1 Location of the Horse

Location of the Horse: FHE Main Barn Stall 12.

9.2 Lessor may inspect the Horse at any time. If Lessor determines that the Horse is not being properly cared for, Lessor may take possession of the Horse.

10. EVALUATION PERIOD

10.1 Evaluation Period Details

Lessee shall have an evaluation period of 14 days beginning on the date this Agreement is fully signed by both parties. The evaluation period fee is included at no separate charge, is earned upon commencement of the evaluation period, and is nonrefundable. Either party may terminate this Agreement during the evaluation period by written notice to the other party. Upon such termination, any per-use or lease fees for usage that occurred remain due, and neither party owes the other any further amount under this Agreement except amounts already accrued.

11. AGREEMENT TERM

11.1 Agreement Term

Term of this Agreement: Fixed period. This Agreement begins on .

11.2 This Agreement continues until .

11.3 Notwithstanding the term stated above, this Agreement may be terminated earlier as provided in the Termination section of this Agreement.

12. PERMITTED USE(S) & RESTRICTIONS

12.1 Permitted Use(s)

Lessor grants Lessee the right to use the Horse for the following purpose(s): Riding Lessons, Solo Arena Riding
Lessee shall not use the Horse for any other purpose without Lessor's prior written consent.

12.2 Riding Lessons, Jumping, and Competitions may take place only while a French Heritage Equestrian Approved Trainer or Instructor is present.

12.3 Lessons

Lessee is permitted by Lessor to provide riding lessons with the Horse: .

12.4 Training

Any professional training of the Horse under this Agreement, including groundwork, schooling, and under-saddle training, shall be conducted only by a French Heritage Equestrian Approved Trainer.

12.5 Additional Restrictions

12.6 Other Allowed Activities

Lessee is not permitted to engage in any activities with the Horse beyond the permitted uses stated above.

12.7 Allowing Others to Ride

The following additional persons may ride or handle the Horse without Lessor's prior permission: The trainer/instructor, Riding Lesson Participants.

Only the persons identified above shall be permitted to ride or handle the Horse without Lessor's written permission.

12.8 Releases Required for Authorized Riders

All persons other than Lessee must have executed Lessee's liability release, which has been reviewed and approved by Lessor, prior to handling or riding the Horse. Lessee is responsible for ensuring this requirement is satisfied before permitting any authorized person to ride or handle the Horse.

13. HORSE CARE AND EXPENSES

13.1 Lessee's Responsibility for Care and Exercise

Lessee's use of the Horse is a responsibility as well as a right: regular, consistent exercise and attention are important to the Horse's health and wellbeing. Lessee is required to maintain regular use and exercise for the Horse on their allowed days,

unless Lessee has discussed with and received mutual agreement from the Lessor in writing that one of those days will be used as a rest day for the Horse. If Lessee regularly fails to use and care for the Horse, Lessor may terminate this Agreement.

13.2 3rd Party Exercise

Lessee is permitted to engage an approved 3rd party to exercise the Horse. All 3rd party exercise shall be conducted only by a French Heritage Equestrian Approved Trainer. Other 3rd parties must be approved in writing by the Lessor.

13.3 Horse care and expenses shall be managed and paid for by the responsible party as listed below.

13.4 Farrier Care

13.5 Veterinary Care

13.6 Protective Equipment

Horse must wear protective equipment: Yes

13.7 Tack

When riding and handling the Horse, Lessee shall use only tack in good condition that is properly fitted to the Horse.

13.8 Rider Aids

The following rider aids are prohibited: Crop or bat.

14. INSURANCE, RISK OF LOSS, AND INDEMNIFICATION

14.1 Insurance Requirements

The parties agree to the insurance elections set forth below. Each policy elected or required below shall be maintained in effect for the duration of this Agreement.

14.2 General Liability Insurance

14.3 Lessor: Has and will maintain general liability insurance covering the Horse and the activities contemplated by this Agreement.

Lessee: Does not have and will not obtain general liability insurance covering the Horse and the activities contemplated by this Agreement.

14.4 If a claim is made under any such policy arising from events for which Lessee bears responsibility, whether directly or indirectly, responsibility for any deductible shall be borne by: Lessee.

14.5 Mortality Insurance

14.6 Lessor: Does not have and will not obtain mortality insurance on the Horse.

Lessee: Does not have and will not obtain mortality insurance on the Horse.

14.7 If a claim is made under any such policy arising from events for which Lessee bears responsibility, whether directly or indirectly, responsibility for any deductible shall be borne by: Lessor.

14.8 Medical Insurance

14.9 Lessor: medical insurance on the Horse.

Lessee: medical insurance on the Horse.

14.10 If a claim is made under any such policy arising from events for which Lessee bears responsibility, whether directly or indirectly, responsibility for any deductible shall be borne by: Lessee. Any out-of-pocket costs for deductibles or other expenses related to the needs of the Horse are to be paid by Lessor, and where Lessee is deemed to be responsible for part or all of a cost paid by Lessor, Lessee shall reimburse Lessor in accordance with the acceptable payment methods stated in this Agreement, or, if Lessee so requests prior to payment by Lessor, Lessee may make such request to pay the billing party directly using a method allowed by that party. Lessee may, with Lessor's written permission, pay for any or all of Lessor's portion when paying the billing party directly, and Lessor may reimburse Lessee in accordance with the terms of this

Agreement. Lessor assumes and is responsible for all risks and costs not paid or covered by any policy held by either party, including in the event a policy is not in effect at the time of the incident, an incident for which a claim is made is deemed not to be covered by a policy, a payment for a claim made for an incident that is covered by a policy is less than the actual cost incurred, or a claim made to a policy is denied for any reason.

14.11 Care, Custody and Control Insurance

Lessee shall obtain and maintain, for the duration of this Agreement, care, custody and control insurance covering the Horse while in Lessee's care, custody, or control, with a death benefit limit of not less than the Horse's current fair market value of \$45,000.00, with an effective start date no later than the commencement of this Agreement. Lessee shall provide proof of coverage to Lessor upon request and shall maintain the policy in good standing for the duration of this Agreement; failure to do so constitutes a material breach subject to the Termination for Cause provisions of this Agreement.

14.12 Coordination of Coverage

Lessor bears responsibility for loss of, injury to, or death of the Horse, and Lessor's mortality insurance shall be the first policy noticed and claimed against for any such covered event. Lessee's care, custody and control insurance is secondary and shall respond only to the extent the loss was caused by Lessee's gross negligence, reckless conduct, or intentional misconduct. Where a loss was so caused, Lessee shall bear the net cost of any applicable deductible and any uninsured portion of the loss, and the parties shall reimburse one another as necessary to give effect to this allocation regardless of the order in which the policies respond. Each party shall promptly notify its insurer of a covered event and shall cooperate in the submission and adjustment of claims. Absent a determination that Lessee so caused the loss, all deductibles and uninsured amounts remain Lessor's responsibility.

14.13 Risk of Loss of or Injury to the Horse

Lessor assumes all risk of loss of or injury to the Horse during the term of this Agreement, except to the extent caused by Lessee's gross negligence, reckless conduct, or intentional misconduct.

14.14 Loss of Use

Lessor acknowledges and accepts that loss of use of the Horse may result from injury to, illness of, or the death of the Horse. No loss-of-use insurance is required or provided under this Agreement.

14.15 Assumption of Inherent Risks

Lessee understands that horseback riding and handling horses are inherently dangerous activities. Lessee acknowledges that horses are unpredictable by nature and may buck, rear, bite, kick, spook, stumble, or otherwise react unpredictably to their environment, which can result in severe injury, paralysis, or death. Lessee acknowledges the California common law doctrine of "Primary Assumption of Risk," as established by the California Supreme Court in *Knight v. Jewett* (1992) 3 Cal.4th 296 and subsequent equine-specific case law (e.g., *Levinson v. Owens* (2009) 176 Cal.App.4th 1534). Pursuant to this binding legal precedent, Lessee, on behalf of all Lessee Parties, expressly and voluntarily assumes all inherent risks associated with riding or handling the Horse, and acknowledges that no Lessor Party owes a duty to protect Lessee from these inherent risks.

14.16 Release of Liability

In consideration for being permitted to handle or ride the Horse, Lessee, on behalf of Lessee and all Lessee Parties, completely releases, forever discharges, and agrees to hold harmless the Lessor Parties from any and all claims, demands, causes of action, liabilities, or damages for personal injury, property damage, or wrongful death arising out of Lessee's use, handling, or riding of the Horse, whether caused by the ordinary negligence of any Lessor Party or otherwise. This release does not apply to gross negligence, reckless conduct, or intentional misconduct.

14.17 Required Protective Attire

Lessee shall wear, and shall ensure that any other person riding the Horse under Lessee's authorization wears, an appropriately fitted and securely fastened ASTM/SEI-certified equestrian helmet at all times while mounted on the Horse, together with heeled boots and long pants; gloves and long sleeves are highly recommended. Riders shall provide their own helmet, boots, and pants meeting these requirements unless otherwise agreed in writing. Lessee, on behalf of all Lessee Parties, assumes all increased risk of injury or death resulting from any failure to wear the required attire. Any refusal or

failure to wear an approved helmet or the other required attire immediately revokes permission to ride or handle the Horse and constitutes a material breach of this Agreement.

14.18 Waiver of Unknown Claims

Each party, on behalf of itself and, respectively, the Lessor Parties or the Lessee Parties, expressly waives any and all claims against the other party and its respective party group that the waiving party does not know or suspect to exist at the time of this Agreement, and acknowledges that this waiver is a material term of this Agreement. Each party assumes the risk that claims presently unknown to it may later be discovered.

14.19 Mutual Indemnification

Each party shall indemnify, defend, and hold harmless the other party and, respectively, the Lessor Parties or the Lessee Parties, from and against any and all claims, damages, losses, liabilities, costs, and expenses arising out of the indemnifying party's use, handling, care, or possession of the Horse, except to the extent caused by the gross negligence, reckless conduct, or intentional misconduct of an indemnified party.

14.20 Limitation of Liability

Under no circumstances shall either party be liable to the other for any special, consequential, incidental, or punitive damages arising out of or relating to this Agreement. The total aggregate liability of either party (including, respectively, the Lessor Parties and the Lessee Parties) to the other under this Agreement shall not exceed the Horse's current fair market value of \$45,000.00. Any amount owed by one party to the other under this Agreement shall be reduced by the amount of any insurance proceeds actually received by the party owed with respect to the same loss. This limitation does not apply to gross negligence, reckless conduct, or intentional misconduct.

15. TERMINATION

15.1 Lessee's Right to Terminate

Lessee may terminate this Agreement by giving Lessor at least days' prior written notice.

15.2 Owner's Right to Terminate

Lessor may terminate this Agreement by giving Lessee at least days' prior written notice.

15.3 Termination for Cause

Either party may terminate this Agreement for cause (including a material breach that remains uncured) by giving the other party at least days' prior written notice.

15.4 Self-Termination upon Loss or Injury

This Agreement shall self-terminate if the Horse is significantly injured or seriously ill as determined by a licensed veterinarian, or dies. Lessee is entitled to a prorated refund of Lease Fee paid for the remaining time unused at the time of self-termination. In the event Lessee is found to have caused, through gross negligence, reckless conduct, or intentional misconduct, the injury, illness, or death, Lessor may retain the unused portion of the paid Lease Fee.

15.5 Termination upon Loss of Use

If the Horse becomes unusable for the purposes of this Agreement for any reason, Lessee may terminate this Agreement immediately upon written notice to Lessor. Upon such termination, Lessee is entitled to a prorated refund of any Lease Fee paid for the remaining unused time as of the date of termination.

15.6 Survival

The releases, waivers, assumptions of risk, indemnities, and limitations of liability in this Agreement, and any payment obligations accrued before termination, survive the expiration or termination of this Agreement for any reason.

16. NOTICE AND CONTACT INFORMATION

16.1 Form of Notice

Any notice required or permitted under this Agreement shall be in writing and delivered by a method that provides evidence of receipt to the party at the contact information below. Notice by email is not effective unless the receiving party

acknowledges receipt.

16.2 Lessee

Name: French Heritage Equestrian

Address: 11500 Clews Ranch Rd Ste A, San Diego, CA 92130

Phone: (858) 439-3614

Email: hello@fhequestrian.com

16.3 Lessor

Name: Charles Zigmund

Address: 752 Windemere ct, San Diego, California 92109

Phone: (617) 838-4183

Email: cjzigs@icloud.com

16.4 Changes in Contact Information

Each party shall promptly notify the other party in writing of any change in the party's address or contact information.

17. ASSIGNMENT OR TRANSFER

17.1 Assignment or Transfer

Lessee shall not assign, sublease, or otherwise transfer this Agreement or any of Lessee's rights or obligations under it without Lessor's prior written consent, unless permitted in the sections above.

18. ENTIRE AGREEMENT

18.1 Entire Agreement

This Agreement contains the entire agreement between the parties with respect to its subject matter and supersedes all prior discussions and understandings. Any modification of this Agreement must be in writing and signed by all parties.

19. GOVERNING LAW AND VENUE

19.1 Governing Law and Venue

This Agreement shall be governed by the laws of the State of California. Any dispute arising out of or relating to this Agreement shall be resolved by binding arbitration in San Diego, California.

20. ATTORNEYS' FEES

20.1 Attorneys' Fees

Each party shall cover their own attorney's fees and costs.

21. SEVERABILITY

21.1 Severability

If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect, and the invalid or unenforceable provision shall be deemed modified to the minimum extent necessary to make it valid and enforceable.

22. LESSEE'S REPRESENTATIONS

22.1 Lessee's Representations

Lessee represents and warrants that Lessee is duly organized and in good standing, and has full authority to enter into this Agreement, and that the individual signing this Agreement does so as Lessee's authorized representative; that each person who rides or handles the Horse under Lessee's authorization will, before doing so, have executed the releases required under this Agreement and possess the knowledge and experience to handle and ride the Horse safely; and that Lessee will use reasonable care and follow Lessor's instructions in all handling of the Horse. By signing this Agreement, Lessee acknowledges that Lessee has read this Agreement, fully understands its terms, and understands that Lessee is giving up substantial legal rights on behalf of Lessee and all Lessee Parties, including the right to sue the Lessor Parties.

23. SIGNATURES

23.1 Signatures

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.

LESSEE

Signature: *{{SIG.LESSEE.NAME}}*

Printed Name: French Heritage Equestrian

Date: {{SIG.LESSEE.DATE}}

LESSOR (OWNER)

Signature: *{{SIG.LESSOR.NAME}}*

Printed Name: Charles Zigmund

Date: {{SIG.LESSOR.DATE}}